STUDENT ACADEMIC INTEGRITY PROCEDURE

SCOPE

This procedure applies to all Monash University staff, students and coursework courses and units.

For assessment of the research component (e.g. thesis) of a graduate research degree, refer to the Graduate Research Thesis Examination Procedures.

Misconduct matters concerning Monash University students undertaking a pathway program at Monash College will be handled in accordance with the Monash College Student General Misconduct Procedure and Student Academic Integrity Procedure. The University will adopt a decision of Monash College, so long as the University is satisfied that the process followed by Monash College was in compliance with any relevant legislative requirement imposed on the University.

PROCEDURE STATEMENT

This procedure supports the academic integrity of education at Monash University (the University) by setting out the responsibilities of students and staff and the requirements for handling suspected breaches of academic integrity by students, including reports of academic misconduct. This procedure must be read in conjunction with the Student Academic and General Misconduct: Hearing and Appeals Panels Procedure, as well as Part 7 of the Monash University (Council) Regulations.

In this procedure:

- references to the associate dean (education) may include roles with equivalent responsibility within the faculty, such as deputy dean (education), associate dean (learning and teaching) at Malaysia, the deputy head of school (education), at Indonesia, the chair of the Campus Education Committee, or at Monash Suzhou, the associate dean (education); and
- references to the responsible officer (RO) refer to the RO for academic misconduct as specified by the Vice-Chancellor, unless stated otherwise.

1. Academic integrity and academic misconduct

1.1 Academic integrity is acting with the values of honesty, trust, fairness, respect and responsibility in learning, teaching and research. It is the use, generation and communication of knowledge, information and data in an ethical, honest and responsible manner.

1.2 Breaches of academic integrity occur on a spectrum of severity, with more minor breaches handled as inappropriate academic practice and more serious breaches handled as academic misconduct.

1.3 Inappropriate academic practice is conduct that can result in minor, trivial or frivolous academic integrity breaches that have minimal impact on the assessment task, e.g. only affecting a few sentences of the assignment or providing a citation without quotation marks.

1.4 Academic misconduct is conduct by which a student gains or attempts to gain an unfair or unjustified academic advantage in a course or unit, e.g. a student submitting work for assessment that misrepresents their work or academic ability.

1.5 An allegation of academic misconduct is made when a suspected breach of academic integrity is determined to be serious (i.e. it is more than minor, trivial or frivolous) or when a student has previously received a warning or finding of misconduct.

1.6 General misconduct (see Student General Conduct Policy) is conduct contrary to accepted standards of behaviour. General misconduct may be combined with academic misconduct for the purpose of an investigation or decision where the conduct is related, e.g. a student submits a fraudulent medical certificate for the purpose of a special consideration application (academic misconduct) and uses the same certificate for a remission of debt application (general misconduct).

1.7 The University treats academic misconduct seriously and will investigate and address suspected misconduct.

1.8 A student who commits, attempts to commit, or assists or encourages another student to commit an act of misconduct commits a misconduct offence.

1.9 The Student Academic and General Misconduct: Hearing and Appeals Panels Procedure sets out the requirements for student misconduct panels in handling allegations of misconduct and student appeals panels in handling appeals against the findings or penalties of misconduct, including academic misconduct alone or general misconduct combined with academic misconduct.

2. Staff and student responsibilities

University responsibilities

2.1 The University communicates the expectations set out in the Assessment and Academic Integrity Policy and this procedure at orientation and through the compulsory student module, Introduction to Academic Integrity.

Faculty responsibilities

2.2 Faculties, during orientation, and chief examiners, in the delivery of each unit, must ensure that:

2.2.1 Students are made aware of disciplinary-specific academic integrity practices and possible consequences that may occur for breaching academic integrity.

2.2.2 Students are referred to academic integrity resources (e.g. at Learn HQ) available to educate them in appropriate academic practice.

2.2.3 Teaching staff are educated to understand their responsibilities regarding academic integrity.

2.3 Faculties must have processes in place to prevent and detect breaches of academic integrity. Detection methods include but are not limited to:

- referring to the similarity report from a similarity-detection system;
- random sampling of submitted assessment tasks to check for similarities;
- comparing the performance of a student across a number of tasks; and
- searching the Internet or electronic databases using likely search phrases to identify sources of suspected plagiarism.

All staff responsibilities

2.4 Staff must design assessment and communicate requirements to students to minimise opportunities for breaching academic integrity, in accordance with sections 2 and 7 of the Assessment Regime Procedure.

2.5 Staff are responsible for understanding and applying the University's commitment to academic integrity, the procedures for dealing with breaches and tools such as similarity-detection systems. Relevant staff are expected to undertake professional development in academic integrity processes provided by the University (e.g. staff modules).

2.6 Staff who reasonably believe that a student has breached academic integrity must report it to the chief examiner via the academic integrity portal (see section 5.1).

Chief examiner responsibilities

2.7 Chief examiners must ensure that:

- students are educated in appropriate academic practice specific to the discipline;
- the difference between collusion and acceptable collaboration with respect to specific assessment tasks, e.g. group tasks, is clearly explained to students;
- students are educated about the responsible and ethical use of generative artificial intelligence tools and how such tools should be acknowledged if they are used;
- all assessment formats that can be submitted online are submitted through the learning management system or eAssessment platform. Exceptions can be approved by the dean (or delegate) based on legitimate pedagogical reasons where online submission is not appropriate;
- all text-based assignments, including eAssessments, that can be submitted through a similarity-detection system are submitted through the system provided (e.g. Turnitin). For non-text-based assignments, if alternative systems have been put in place by the faculty, these must be used (e.g. MOSS);
- staff who are marking assessment, including eAssessments, must consider the reports from similarity-detection systems when assessing work and must apply academic judgement to determine whether there is evidence of a breach of academic integrity, rather than relying on the reports' raw scores;
- reports of suspected breaches are managed through the University's academic integrity portal;
- the actions to implement a responsible officer's (RO's) or student misconduct panel's (SMP's) misconduct decision and/or penalty are promptly taken, e.g. to mark the assessment or to amend the grade; and
- they meet any responsibilities assigned to them under this procedure.

Responsible officer (RO) responsibilities

2.8 The RO will be supported by Student Conduct and Complaints (SCC), which may undertake steps in this procedure on behalf of the RO.

2.9 The RO and SCC will give due consideration and care to the health and safety of any person who reported the alleged misconduct or provided evidence. Where necessary, the RO or SCC can determine whether to provide only the substance of the evidence to the student.

2.10 As a decision maker, the RO is responsible to determine the misconduct and apply the appropriate penalty based on the evidence presented.

2.11 The RO must consider the relevant evidence related to the allegation. If the RO is satisfied that it is more likely than not that the alleged misconduct occurred and the conduct was knowing and/or reckless, the RO will find the allegation of misconduct proven based on the balance of probabilities.

2.12 Where the RO finds misconduct proven, they may consider any previous academic integrity warnings or findings of academic misconduct to determine an appropriate penalty.

2.13 The RO and SCC will endeavour to handle and conclude a misconduct matter promptly.

Student responsibilities

2.14 Students must complete the compulsory introductory module in academic integrity at the start of their studies. Students who do not complete the module in the required timeframe will be blocked from accessing the learning management system.

2.14.1 Coursework students complete the compulsory Introduction to Academic Integrity module.

2.14.2 Graduate research students complete the compulsory Research Integrity module.

2.15 Students are responsible for demonstrating appropriate academic practice. Specifically, students must:

- undertake their studies and research responsibly with honesty, integrity, fairness and respect;
- seek support or clarification from the University when they are unsure about academic integrity requirements;
- appropriately acknowledge the work of others and seek permission to use that work where required;
- appropriately acknowledge the use of generative artificial intelligence tools;
- take reasonable steps to ensure that other students are unable to copy or misuse their work; and
- be aware of and comply with University regulations, policies and procedures related to academic integrity and academic misconduct.

2.16 When students do not maintain academic integrity standards, they are at risk of breaching academic integrity or engaging in misconduct. Specifically, students must not:

- plagiarise, collude, cheat or falsify their work;
- resubmit any assessment they have previously submitted in another course or unit, including at another institution, without permission of the chief examiner;
- engage in contract cheating or fraud;
- share any assessment content with unauthorised sites or platforms; or
- breach the rules for final scheduled assessment.

2.17 As members of the University community, students are encouraged to uphold the academic integrity of the University by reporting any academic integrity issues (e.g. finding unit content, assessment materials or solutions online) they become aware of to their chief examiner or to academicmisconduct@monash.edu.

2.18 Students may use the similarity-detection system prior to the final submission of their assessment task to check and improve their work. The system may take significant time for processing and students are responsible for planning ahead to ensure they submit the task by the deadline.

2.19 Students must complete the assessment declaration provided when submitting assessment tasks, except for assessments completed and submitted in class. Assessment tasks that are not accompanied by a declaration will not be marked.

- The declaration may cover a single assessment task, a group of assessment tasks, or an entire unit, as determined by the chief examiner. It must be submitted online, unless required by the chief examiner to be submitted in hard copy.
- For group tasks, each member of the group must complete an assessment declaration.

3. Principles for decision makers

3.1 All decision makers are bound by the rules of natural justice. This means that for suspected academic integrity breaches, including allegations of academic misconduct, students have the right to:

- be informed of the process being followed, referred to support during the process and notified if unexpected delays arise;

- be informed of the allegations and evidence against them and provided with a reasonable opportunity to respond;
- have their response considered and the allegations determined by an unbiased decision maker who will base decisions only on the relevant evidence.

3.2 The actions required to afford natural justice to students who are suspected to have breached academic integrity or alleged to have engaged in academic misconduct may differ in each case depending on the particular facts and circumstances.

3.3 Decision makers will determine the appropriate weight to give each piece of evidence, considering the relevance and reliability of the evidence, the concurrence of the evidence with the circumstances being investigated, whether the evidence is corroborated, and the circumstances surrounding the suspected academic integrity breach or alleged misconduct.

3.4 Decision makers are not bound by the rules of evidence.

3.5 Each suspected breach of academic integrity or allegation of misconduct must be the subject of a separate finding that is determined based on the relevant evidence before the decision maker.

3.6 In determining suspected academic integrity breaches or alleged academic misconduct, the decision maker must be satisfied that it is more likely than not that the alleged conduct took place; the burden of proof required is the balance of probabilities, not beyond reasonable doubt.

3.7 Decision makers must document:

3.7.1 both the decision and the reasons for reaching the decision, citing the relevant facts found to be proven; and

3.7.2 the evidence on which the findings were based.

3.8 Decision makers will endeavour to handle and conclude matters promptly, having regard to the circumstances of the case.

4. Types of academic integrity breaches

4.1 A breach of academic integrity includes, but is not limited to, conduct described in this section.

Plagiarism

4.2 Plagiarism is the act of using another person's ideas or manner of expressing them and passing them off as one's own, e.g. by failing to give appropriate acknowledgement. See also section 4.7 Resubmission of previous work, which may also constitute plagiarism. Specifically, plagiarism occurs when a student:

- paraphrases other people's work and/or ideas without referencing the source;
- provides reference to the source but inappropriately paraphrases other people's work and/or ideas by not expressing them in the student's own words;
- copies other people's work in whole or in part;
- presents other people's ideas, designs, codes or images as the student's own work;
- uses cultural artefacts without permission and/or appropriate acknowledgement;
- uses exactly the same phrases, passages, layout or structure without quotation marks or without a reference to the source; or
- reproduces provided lecture notes or materials without acknowledgement.

4.3 Any type of information can be plagiarised, including but not limited to:

- published or unpublished works;
- other people's or the student's own work;
- physical artefacts;
- code;
- media;
- lecture notes and recordings;
- web pages; and
- spoken words.

Collusion

4.4 Collusion is unauthorised collaboration with another person, where students work together on an assessment task which is then presented as a student's own individual work. Collaboration on group tasks when authorised or instructed to do so in an appropriate manner is not collusion. Collusion occurs when a student, without the authorisation of teaching staff:

- provides copies of notes or work to others, allowing content to be copied for the purposes of an assessment task;
- produces or edits assessable work for another student;
- allows others to copy their work or notes, or shares questions or answers to an assessment task;
- copies the work or notes of another, with or without changes, for the purposes of an assessment task;

- allows another person or entity to produce or edit their work, except where Disability Support Services has approved the use of a scribe; or
- offers to produce academic work for other students in lieu of collaboration.

4.5 Collusion can occur whether or not the persons or assessment concerned are connected with Monash University.

4.6 Unless otherwise stated in the learning management system, students can have another person or entity proofread their work. Acceptable proofreading is the process of identifying errors and suggesting corrections to spelling and grammar. Proofreading by another person or entity does not include:

- rewriting passages of text in order to clarify meaning;
- changing the words used by the student;
- rearranging or reformatting text, code or other material;
- adding material or references to the original work; or
- checking calculations or formulas.

Breach of assessment conditions

4.7 Students must not breach the conditions for assessments set by chief examiners in the learning management system or within the assessment instructions. Conditions may include but are not limited to:

- only accessing authorised materials or not accessing any materials during an assessment (e.g. specifically permitted items or a closed-book quiz or test);
- only using specifically authorised tools or devices (e.g. using only approved calculators);
- completing an assessment as a group or individually;
- not using generative artificial intelligence tools; or
- acknowledging the use of generative artificial intelligence tools in the creation of work.

Stylistic or formatting requirements (such as word counts or the use of a particular referencing style) are not considered conditions for an assessment and must not be used to determine whether a breach of assessment conditions has occurred. Instead, they should be included in the assessment criteria for the assessment task.

Resubmission of previous work

4.8 Students must not, without the permission of the chief examiner or nominee, submit for assessment any part of any work they have previously submitted, whether in the same unit or in another unit or course, at any higher education institution.

Contract cheating

4.9 Contract cheating is the act of engaging, or acting as, a third party to complete some or all of an assessment task on a student's behalf, irrespective of the third party's relationship with the student, and whether they are paid or unpaid. Contract cheating includes instances when a student either receives or offers a contract cheating service, such as when they:

- engage a third party to produce some or all of the work, including family members, friends, students or staff members;
- have another person sit a scheduled final assessment (i.e. an examination) or take their place in assessable work (e.g. placement, in-class assessment, scheduled final assessment); or
- take the place of, or produce the work for, another student in assessable work.

Fraud

4.10 Fraud is a form of cheating where a student submits false information in or relating to an assessment task. Fraud may be a criminal offence and may be subject to legal action. Types of fraudulent information include:

- creating false references in an assessment;
- falsified data for an assessment, including creation of additional data to supplement actual data, modifying data, falsifying data sets;
- forged signatures of teaching or professional staff or placement supervisors, or similar forms of authorisation;
- any fraudulent medical certificate submitted with an application for special consideration.

Unauthorised distribution of course related materials

4.11 Students are not permitted to share, sell or pass on to another person or entity (including file-sharing sites and public repositories):

4.11.1 any course material produced by the University, such as lecture slides, lecture recordings, class handouts, assessment requirements and questions (excluding Handbook entries); such conduct may also be a breach of the Copyright Compliance Policy and constitute a copyright law infringement subject to legal action; or

4.11.2 any assessment-related material produced by students themselves or other students (such as notes, past assignments), nor to receive such material, without the permission of the chief examiner.

Final assessment misconduct

4.12 Final assessment misconduct is cheating, or attempting to cheat, in scheduled final assessments and includes the possession of unauthorised materials (as published on the University's website) and a breach of the rules or instructions of a scheduled final assessment for the purpose of gaining or attempting to gain an unfair or unjustified academic advantage. (Where there is no evidence of the student gaining or attempting to gain an academic advantage, the breach may be managed as an allegation of general misconduct by SCC.)

5. Reporting and handling suspected breaches of academic integrity

5.1 All staff members are required to report suspected breaches of academic integrity by students, and must do so via the online form. Once a case is submitted via the online form it is managed in the academic integrity portal in the process outlined in the academic integrity flowchart.

5.1.1 When the suspected breach is in relation to any assessment task, including a scheduled final assessment, the staff member must stop marking the assessment (if applicable) and immediately report the breach to the chief examiner or nominee via the online form, clearly describing the suspected breach and providing the evidence, including where relevant the identity of any other individuals suspected to be involved.

5.1.2 For potential breaches in eAssessments that are detected by invigilators or invigilation software, cases will only be referred to the chief examiner or nominee where their expertise is required to determine if the evidence indicates that the student gained an unfair or unjustified academic advantage. All other cases will be referred directly to SCC.

5.1.3 When the suspected breach by a student does not relate to a particular assessment task or unit, e.g. by sharing an assignment from a previous year with a third party, the report is submitted via the online form directly to the RO via SCC (by selecting 'other chief examiner') as an allegation of academic misconduct (section 7.1).

5.2 People who are not staff members, including students, can report suspected cases of student academic integrity breaches to SCC via academicmisconduct@monash.edu.

5.3 Students and staff members can report contract cheating services, or other services that are reasonably likely to encourage or facilitate academic misconduct. The University may report this information to authorities.

5.4 The chief examiner or nominee will receive the report of a suspected student academic integrity breach via the academic integrity portal and must follow the full investigation process provided in the portal.

5.5 Where the chief examiner or nominee sends a notice of suspected breach to the student, they must clearly describe the suspected breach and provide the evidence to the student, including where relevant the identity of any other individuals suspected to be involved. The student must respond within five working days. If the student does not respond, the chief examiner or nominee will determine whether there has been a breach of academic integrity based on the available evidence.

5.6 The chief examiner or nominee must consider the evidence and decide whether it is more likely than not that there has been a breach of academic integrity and determine the type of breach (see section 4).

5.7 After considering the evidence, the chief examiner or nominee will decide the matter and take the appropriate action outlined in Table 1.

Table 1: Actions and outcomes for a suspected breach of academic integrity (determined by chief examiner or nominee)

Decision	Action	Student outcome
No breach of academic integrity	Dismiss the matter and arrange for the work to be marked as normal.	• The student's work is marked as normal. • The student is not recorded on the academic integrity register.
Minor breach of academic integrity (i.e. minor, trivial or frivolous) where the student has not received a prior warning or finding of misconduct	Provide the student with an educative response (see section 6).	• The student receives a warning. • The student is recorded on the academic integrity register. • The mark awarded reflects the inappropriate academic practice (see section 6.1).
Serious breach of academic integrity or a minor breach where the student has received a prior warning or finding of misconduct	Refer the matter to the RO via SCC through the academic integrity portal.	• The student is subject to the disciplinary proceedings for academic misconduct (see sections 7 to 10).

5.8 A dismissed suspected academic integrity breach or dismissed allegation of academic misconduct must not be considered as a prior warning or finding of misconduct.

Group assessment tasks

5.9 If the breach relates to a group assessment task:

5.9.1 The assessment task may be awarded a mark that reflects the inappropriate academic practice (see 6.1).

5.9.2 A case will be dismissed for any group member where there is no evidence that they have breached academic integrity.

6. Educative response to academic integrity breaches

6.1 If the chief examiner or nominee, or the RO in cases of alleged misconduct, determines that the student's breach was minor, trivial or frivolous due to inappropriate academic practice, the chief examiner, RO or nominee must:

- help the student identify gaps in their skills or knowledge that led to the academic integrity breach;
- counsel the student in appropriate academic practice;
- recommend that the student undertake relevant academic skills development (e.g. book in with a learning advisor in Student Academic Success, use relevant learning resources);
- issue an Academic Integrity Warning Outcome in writing through the academic integrity portal within seven days of their decision; and
- award a mark that reflects the inappropriate academic practice indicated by the breach (see 6.1.1).

6.1.1 When marking a task as part of an educative response, the chief examiner or nominee must not impose a penalty. A mark must be awarded that disallows the sections of the work that contain the breach because the student cannot earn marks for work that is not appropriate. (Note: This is different to the penalty of 'disallowance of work or mark', which applies to the **whole task** (see Table 3) and which can only be imposed by the RO or SMP.)

6.1.2 If disallowing the sections of the work that contain the breach would result in failure of the task, the chief examiner or nominee may, at their discretion, allow the student to resubmit the work, in whole or in part, for a maximum mark of 50 per cent of the marks available for the task. This opportunity would be provided where the chief examiner or nominee determines that it would not disadvantage other students.

6.2 The Academic Integrity Warning Outcome is an official record that the student has been counselled in appropriate academic practice and warned of the consequences of academic misconduct. The warning is recorded on the academic integrity register but not on the student's academic transcript. If the student is suspected on a later occasion of breaching academic integrity, the previous warning will be taken into account and the later occasion must be referred directly to the RO as an allegation of academic misconduct.

7. Reporting alleged academic misconduct to the responsible officer (RO)

Reporting alleged misconduct

7.1 Where a suspected breach of academic integrity is serious, or it does not apply directly to assessment in a unit, it must be reported immediately as an allegation of academic misconduct to the RO via SCC, through the online form by selecting 'other chief examiner'.

7.2 Where a report of academic misconduct relates to the conduct of more than one student arising from the same or related circumstances, the RO may determine the allegations jointly if appropriate to do so.

7.3 In accordance with Regulation 29 of the Monash University (Council) Regulations, if a partner or host institution makes a finding in relation to academic misconduct of a student enrolled in a joint award or study under an exchange arrangement, the RO may adopt the finding if they are satisfied that the partner or host institution observed the rules of natural justice and their process complied with the legal obligations of Monash University. If the RO is not satisfied that these requirements have been met, they must apply the decision-making processes of this procedure.

7.4 Where a report of misconduct involves academic misconduct coupled with general misconduct, it may be handled under this procedure. However, if, in the opinion of the RO for general misconduct in consultation with the RO for academic misconduct, the matter is more appropriately handled under the Student General Misconduct Procedure, the report of both academic and general misconduct will be investigated or determined in accordance with that procedure.

7.5 Where a report of misconduct includes both academic and general misconduct, and the report of general misconduct includes sexual misconduct, the RO must refer the general misconduct allegations to the RO for general misconduct but may continue to manage the allegations of academic misconduct concurrently in accordance with this procedure.

7.6 Where an allegation of academic misconduct occurs with an allegation of research misconduct, the matter is referred to the RO for research misconduct, as specified by the Vice-Chancellor. The matter will not be investigated or determined in accordance with this procedure (see Responsible Conduct of Research: Procedure for Investigating Code Breaches).

Receiving and referring a report

7.7 SCC may investigate academic misconduct, whether or not a report has been made, if there are reasonable grounds to believe a student has committed an act of academic misconduct.

7.8 SCC may on behalf of the RO refer a report directly to an SMP if the student is already on the academic integrity register with a previous finding of academic misconduct and:

- the student is subject to more than one report of alleged academic misconduct during the same teaching period; or
- the student has allegedly facilitated others to engage in academic misconduct; or
- the allegation includes strong evidence of serious misconduct including, but not limited to, multiple instances of fraud or unauthorised distribution of course materials.

7.9 When the RO receives a report of academic misconduct, they must consider the report and determine whether to:

- dismiss the report and take no further action; or
- investigate the report (section 8); or
- refer the report to an SMP or another RO, in accordance with sections 7.5, 7.6 and 8.7.

7.10 The process for an SMP to determine a report of academic misconduct is outlined in section 1 of the Student Academic and General Misconduct: Hearing and Appeals Panels Procedure.

7.11 At any time during a case if SCC believes that the allegation is minor, trivial, vexatious or frivolous, they may recommend that the RO dismiss the report and refer the matter to the chief examiner or nominee to provide an educative response (section 6).

7.12 One action may constitute more than one offence of misconduct. Where multiple allegations or reports are made about the conduct of one student arising from the same or related circumstances, the RO must deal with the allegations at the same time, even if the reports originate from different sources.

8. Determination by the responsible officer (RO)

Investigation

8.1 Where SCC receives a report of alleged academic misconduct, SCC will investigate the report, undertaking the following steps on the RO's behalf:

- identify how the allegation could amount to misconduct;
- consider the evidence available;
- determine the process for investigation, which may include meeting with the student, making follow up enquiries or obtaining additional evidence;
- use appropriate internal University or external resources available to assist in the conduct of the investigation;
- request information, orally or in writing, from any person at any time and set a deadline for a response, normally within five working days of the request. When in writing, the request must state that it is made under the Monash University (Council) Regulations. The reason for the request does not need to be disclosed. If no response is received by the deadline, the investigation will proceed on the basis of existing information; and
- where applicable, if an investigation has not been finalised before the unit's results are finalised, instruct the chief examiner to assign a grade of Withheld (WH) until the outcome has been determined.

Notice of allegation and student response

8.2 SCC will notify the student of the alleged misconduct in writing to the student's Monash University email account, unless the RO decides to dismiss the case without further investigation or the RO or SCC decides to refer it straight to an SMP. The notice of allegation will set out:

- the sections of the Monash University (Council) Regulations relevant to the allegation;
- the specific allegation made against the student, including the type of misconduct, when and where it is said to have taken place, the role the student is alleged to have played in the misconduct, and if relevant the identity of any other individuals suspected to be involved;
- a copy of the evidence for the misconduct, subject to 8.3 below; and
- the opportunity for the student to respond to the allegation and evidence.

8.3 The evidence for the alleged misconduct must be provided to the student and will generally be provided with the notice of allegation. However, in exceptional circumstances or where evidence is received by SCC after sending the notice of allegation, evidence may be provided at any time during an investigation, including during a meeting with the student. Where evidence is not provided with a notice of allegation, the student must be given a reasonable opportunity, not less than five working days, to respond to the allegation and evidence before the RO makes a determination.

8.4 If invited to a meeting, a student is entitled to:

- be accompanied and assisted by a support person who is not permitted to represent or advocate for the student, except for a student at Monash University Malaysia who can be represented by a staff member or student; and
- make oral and/or written responses to the allegation and evidence.

8.5 If a student does not provide a response in the time specified and/or does not attend a meeting, the RO can make a determination based on the evidence available.

Making a determination and imposing a penalty

8.6 In deciding the outcome, the RO will consider evidence relating to both the facts of the alleged act and the intention required for misconduct to be proven.

8.6.1 For misconduct to be proven, the RO must determine that the action was committed knowingly or recklessly (i.e. without regard to the consequences of the conduct). A student can be found to have engaged in misconduct even if they were unaware that the act was misconduct.

8.6.2 For academic misconduct, previous education about academic misconduct can be considered evidence that the alleged act under investigation was committed knowingly. Previous education includes but is not limited to advice or instruction personally directed to a student, a prior warning about academic misconduct or a prior notice of allegation regardless of the outcome.

8.6.3 A previous finding of academic misconduct against the student must not be considered by the RO in determining whether the misconduct is proven and may only be considered after making their decision in order to determine the appropriate penalty.

8.7 At the conclusion of an investigation, the RO must either:

- find that misconduct is not proven (i.e. there is insufficient evidence that an act of academic misconduct occurred) and dismiss the allegation;
  - if the student received a notice of allegation, they are recorded on the academic integrity register with the fact that the case was dismissed. The student has no record of misconduct and the work must be assessed as normal without penalty.
- find that the student's conduct was minor, trivial or frivolous, dismiss the allegation and implement an educative response (see section 6);
- find that the misconduct is proven and determine a penalty as set out in section 9; or
- refer the report to an SMP to hear and determine the matter if satisfied that the allegation of misconduct is sufficiently serious or complex that it would warrant a penalty which can only be imposed by an SMP under the Student Academic and General Misconduct: Hearing and Appeals Panels Procedure.

8.8 SCC will notify the student of the decision as set out in section 10 of this procedure.

8.9 If a student withdraws from a unit in which an allegation of misconduct has been made, and continues to be a student of the University, the investigation will proceed and the findings and any penalties will be recorded on the register.

8.10 If a student with an allegation of misconduct either discontinues their enrolment at the University or graduates before the allegation is determined, SCC will:

- suspend the investigation;
- keep the evidence and documents;
- arrange for the student's record in the student management system to be flagged for an outstanding allegation;
- resume the process to determine the allegation if the student later re-enrols at the University, and determine the allegation at that time; and
- notify the student of these actions.

9. Penalties

9.1 The penalties available to the RO are prescribed in the Monash University (Council) Regulations and the penalty powers published under those Regulations, as set out in Table 2 below.

9.2 A penalty does not need to be imposed if the RO is satisfied that the misconduct is minor in nature and the student is unlikely to engage in further misconduct.

9.3 When imposing a penalty or penalties, the RO will take into account:

- punishment of the student who engaged in the misconduct;
- deterrence of future misconduct by the student or others;
- rehabilitation of the student to avoid further misconduct;

- protection of the University community or precinct;
- protection of any relevant public interest;
- the nature and severity of the misconduct;
- the personal circumstances of the student including mitigating and aggravating circumstances;
- any measures already taken in relation to the student's misconduct;
- any loss, damage or harm caused by the student's misconduct to the University or a person;
- any penalty guidelines issued by the Council, not applied as a rule, but considering the facts and circumstances of the case; and
- any previous finding of academic misconduct against the student, which the RO will not ascertain until after finding the misconduct proven and before determining the penalty.

9.4 The RO has the power to impose the penalties listed in Table 2.

Table 2: Penalty options for academic misconduct or academic misconduct coupled with general misconduct

Penalty	Description and conditions	Operation and effect
No penalty	When misconduct has been substantiated and the decision maker decides not to impose a penalty because they are satisfied that the misconduct was minor and the student is unlikely to engage in further misconduct.	The notice of decision, which records that a finding of misconduct was made but no other penalty imposed, is added to the student's file. A mark can be awarded that disallows the sections of the work that contain the breach.
Record of misconduct	A recording of the fact and nature of the misconduct on the student's file that the student was found to have engaged in misconduct.	The record remains on the student's file as long as the file is retained by the University (see section 12). The record is added to the academic integrity register.
Reprimand	A formal reprimand and censure for the misconduct.	Where a reprimand has previously been issued, any future penalties for subsequent findings of misconduct may be more serious.
Consent penalty	A condition placed on the student, with their agreement, that is intended to educate and rehabilitate the student, to acknowledge their misconduct and/or to avoid further misconduct. A consent penalty for *general misconduct* may be the requirement to: • seek counselling or attend a specific educative or preventative program; • assist with a University event or activity; • apologise in writing to any person aggrieved by the misconduct; and/or • write a reflection on their act of misconduct. A consent penalty for *academic misconduct* may be the requirement to: • enrol in no more than a specified number of units; • enrol in a particular unit; • develop a study plan to be approved as specified; • write a reflection on the act of misconduct • seek academic or other counselling; • make contact with a course supervisor at specified intervals; and/or • meet the conditions imposed by an academic progress committee.	A date must be set by which the condition must be met. The student must inform and provide evidence to the SCC of their compliance with the consent penalty. If the student fails to comply, and the RO considers the student's reasons for non-compliance to be reasonable, the RO may extend the time for compliance or waive the penalty. In all other cases, if the RO determines that the student has failed to comply with the consent penalty, they will annul the penalty and impose a new penalty having regard to the original findings and evidence. If the RO annuls the penalty and imposes a new penalty, SCC must notify the student within seven working days of the decision being made.
Disallowance of work or mark	For work not yet assessed, the assessment of the work is prohibited. For work that has already been assessed, the mark given to the work is disallowed.	Where resubmission is allowed, the mark of the resubmitted work will count towards the final unit result. The maximum mark a student can receive for a resubmitted task is 50 per

	The Responsible Officer may permit the resubmission of the work within a specified time and subject to specified conditions. The penalty is applied to the whole work.	cent of the marks available for the task. Where resubmission is not allowed, the final unit result will be calculated with a mark of zero for the work.
Mark of zero for unit	The student's mark for the unit is recorded as zero.	Failure of the unit with a mark of zero.
Fine	A monetary sum that must be paid to the University calculated on the value of one penalty unit multiplied by the number of penalty units imposed as the penalty, not exceeding 5 penalty units (or equivalent at non-Australian locations as determined by the Pro-Vice-Chancellor). See the Vice-Chancellor's notice of the amounts of fines that may be imposed.	A fine is a debt to the University and failure to pay the fine can result in invalidation of enrolment and may be recovered as a debt in court.
Restitution*	A requirement to make restitution to the University or a person who has suffered loss for the sole purpose of making good damage caused by the misconduct, and may be made by an action specified by the penalty or by payment, but does not extend to financial compensation.	
Restriction on contacting certain staff or students*	The student is restricted from contacting specified staff or students for the period determined by the RO. Contact may include speaking to or approaching another person via channels including, but not limited to, social media, email, letter, telephone or through a third party.	
Prohibition*	The student is prohibited from entering a specified area of the University for a specified period of time and under any set conditions. The penalty is imposed if considered necessary to protect any person or University property.	The student remains a student and can continue their study in a course or unit, but must not be present in the specified area. The student must have reasonable access to all necessary resources to undertake study.

* Penalty typically imposed for general misconduct that arises from the same circumstances as academic misconduct.

9.5 When imposing a penalty, the RO may suspend the operation of that penalty for a period of up to five years on condition that, during the term of the suspension, the student does not commit another act of misconduct, and on any additional conditions set by the RO. The original penalty will not be imposed if all of the conditions on which the suspension of the penalty depends are met at the end of the period. If the student commits another act of misconduct or breaches a condition imposed within the period of the suspension of the penalty, the penalty will take immediate effect.

10. Notice of decision

10.1 SCC must send a notice of decision to the student, normally within seven working days of the decision being made. The notice must set out:

- the decision;
- the reasons for the decision including relevant facts found to be proven;
- the evidence on which the findings were based;
- the penalty imposed and any conditions attached;
- the reasons for the penalty including an assessment of the seriousness of the misconduct and any mitigating or aggravating factors taken into account in imposing the penalty; and
- the process and timeframe for lodging an appeal.

10.2 The notice of decision will be retained on the student's file and SCC will notify staff members responsible for implementing the decision, including:

- for coursework students: the chief examiner and relevant staff in the teaching faculty, and the managing faculty if applicable;
- for students at Malaysia: Registrar and Chief Governance Officer;
- for students at Indonesia: Educational Technology and Design Manager;

- for students at Suzhou: Director of Masters Programs and relevant course coordinator;
- for graduate research students: the associate dean (graduate research) or equivalent and the Monash Graduate Research Office.

10.3 The notice of decision is not itself a record of misconduct. Where the penalty of record of fact has been imposed, this penalty must be listed within the notice of decision.

10.4 The RO's decision is final, subject to the outcome of any appeal submitted by the student in accordance with the Student Academic and General Misconduct: Hearing and Appeals Panels Procedure.

10.5 A chief examiner or nominee must not vary the decision of the RO under this procedure, e.g. by applying any penalty to an assessment task in addition to those imposed by the RO; or applying any penalty where the RO has determined to either dismiss the report or handle the report with an educative response.

10.6 Upon receiving the decision of the RO, the chief examiner or nominee must proceed to implement the decision, e.g. mark the assessment or amend the grade, in accordance with relevant faculty business processes.

11. Appealing a decision

11.1 A student who has been found to have committed an act of academic misconduct by the RO may appeal against the finding and penalty, or the penalty only. If the student admitted the misconduct during the misconduct investigation, they cannot appeal against the finding but may appeal against the penalty only. The Student Academic and General Misconduct: Hearing and Appeals Panels Procedure outlines the appeals process.

11.2 At the Malaysia campus, a student dissatisfied with any disciplinary proceeding may submit an appeal in writing to the Malaysian Registrar General of Private Higher Educational Institutions within 14 days from the date of receipt of the decision, pursuant to the Private Higher Educational Institutions Act 1996 and any directions issued by the Registrar General, as amended from time to time.

12. Record keeping and reporting

Records

12.1 For the purpose of this procedure, the student's file refers to documents and correspondence stored in various secure systems used by the University and a student's academic record is the record of their enrolment and academic achievement stored in the student management system.

12.2 The record for a case of misconduct handled under this procedure will be stored on the student's file, but not on the student's academic record, and includes all of the following documents that exist:

- notice of allegation;
- investigation records of the RO;
- documents of the student's response to the allegations;
- minutes of the panel hearing;
- notice of decision; and
- notice of appeal and appeal hearing documents.

12.3 When a case is concluded (including the appeal) any documents relating to a case held locally by staff members must be securely destroyed within one month.

12.4 The University will maintain an academic integrity register, which records a summary of the allegations, findings, penalties and appeals relating to each case of student academic misconduct, as well as warnings for minor academic integrity breaches. Student records in the register are confidential and can only be disclosed externally to the University with the student's consent or as required by law. They will be handled in accordance with the Data Protection and Privacy Procedure and Student Data Protection and Privacy Collection Statement.

12.5 The retention period for academic misconduct and warning records in student files and on the academic integrity register is seven years, unless the student was excluded, in which case the period is 15 years (see the Retention and Disposal Authority for Records of the Higher and Further Education Functions). Where the misconduct was dismissed, the record will be maintained on the register for a period of two years. After this period the records will be securely destroyed unless there is an external legislative requirement to maintain specific records for a longer period. The exception is for records of students in courses qualifying for law practice, which will be kept permanently.

Reporting

12.6 The associate dean (education) is responsible for taking appropriate action in response to any trends or systemic issues identified through the academic integrity or academic misconduct processes.

12.7 At the start of each year, the associate dean (education) will review the faculty's academic integrity and misconduct data for the previous year and submit a qualitative analysis and any necessary remediation plan to SCC.

12.8 SCC will submit a report twice a year on academic integrity and misconduct to the University Education Committee and Academic Board, highlighting trends and addressing risk and quality issues related to academic integrity and misconduct.

DEFINITIONS

Academic integrity	Acting with the values of honesty, trust, fairness, respect and responsibility in learning, teaching and research; the use, generation and communication of knowledge, information and data in an ethical, honest and responsible manner.
Academic misconduct	Conduct by which a student gains or attempts to gain an unfair or unjustified academic advantage in a course or unit of study. It includes a wide range of behaviours which are outlined in Part 7 of the Monash University (Council) Regulations and section 4 of this procedure.
Academic skills development	Services and resources to help students improve their academic skills, which are offered by Student Academic Success and faculties.
Cheat, cheating	To seek to obtain an unfair or unjustified advantage in a course or unit.
Chief examiner	The academic staff member responsible for the implementation of a unit's assessment regime and for recommending the final result for each student. A dean must appoint a chief examiner for each unit taught by the faculty.
Collaboration	Working with others on authorised group work under the instruction of the chief examiner or nominee.
Collusion	Unauthorised collaboration with another person or entity on assessable work that is presented as the student's own work. In contrast, students can collaborate on group tasks when authorised or instructed to do so.
Consent penalty	A discipline penalty imposed on a student with their agreement as defined in Monash University (Council) Regulation 43.
Contract cheating	Engaging, or acting as, a third party to complete some or all of an assessment task on the student's behalf, irrespective of the third party's relationship with the student, and whether they are paid or unpaid.
Decision makers	Chief examiners who are responsible for determining suspected academic integrity breaches and responsible officers who are responsible for determining allegations of student misconduct.
eAssessment	Assessment that students complete in the University's online assessment platform.
Encumbrance	A block placed on a student's access to certain university services as a result of unpaid fees, fines, loan repayments, missing information (e.g. tax file number), unreturned resources (e.g. library item) or disciplinary proceedings.
Final assessment misconduct	Conduct that breaches the rules, instructions and conditions for scheduled final assessments.
Fraud	An intentionally dishonest act or omission, including actions which are misleading, deceptive or misrepresentative, e.g. forging or altering information or documents.
General misconduct	Conduct that is contrary to accepted standards of behaviour. It includes a wide range of behaviours which are outlined in Part 7 of the Monash University (Council) Regulations and in the Student General Conduct Policy.
Generative artificial intelligence	A set of technologies that can perform tasks normally requiring human intelligence - in this case specifically the ability to create new data outputs such as text, images, audio and video.
Host institution	An institution at which a student is undertaking exchange study, study abroad or complementary study.
Joint award	A partnership arrangement where a course is delivered jointly between Monash and a partner and leads to a single award.
Knowingly	Acting consciously or deliberately, in full awareness of the action.

Learning management system	Moodle, the University's system for the administration, documentation, tracking, reporting and delivery of units and other forms of study.
Managing faculty	The faculty specified in the Handbook as being responsible for the administration of a course for the year for which the Handbook is published.
Minor, trivial or frivolous	In relation to a breach of academic integrity, one that was unintended and/or has minimal impact on the assessment task, e.g. affecting a few sentences of the assignment or providing a citation without quotation marks.
Partner institution	An educational institution with which the University offers one or more joint degrees or other awards.
Plagiarism	The act of taking and using another person's ideas and/or manner of expressing them and passing them off as one's own.
Proofreading	The process of identifying errors and suggesting corrections to a text.
Reckless	Without consideration of or disregarding the risks or consequences of the action.
Similarity-detection system	A system (e.g. Turnitin or MOSS) that compares text, data, code or other elements in a student assessment against various sources including the internet, published works, commercial databases and assessments previously submitted through the system.
Student Misconduct Panel (SMP)	The student discipline panel established in accordance with the Student Academic and General Misconduct: Hearing and Appeals Panels Procedure.
Student	A person who: (a) is admitted to a course of study at the University; (b) is enrolled at the University in a non-award study or one or more units of study on an assessed or non-assessed basis and without admission to a course; (c) is pursuing a course of study or unit of study at the University through an exchange or study program or other arrangement between the University and another educational institution; (d) is engaged in a student mobility program involving the University, whether or not the program is credited towards a course of study or unit of study; (e) has completed a course of study but on or to whom the relevant degree or award has not been conferred or awarded; or (f) has deferred, or has intermitted, or has been suspended from, a course of study; (g) is enrolled in a course of study or one or more units of study offered by the University through another educational institution; or (h) has consented in writing to be bound as a student by the University statutes and regulations.
Teaching faculty	The faculty responsible for teaching the unit or, where teaching is shared among faculties, the faculty with the greatest percentage of teaching responsibility.
Unauthorised distribution of course related materials	Sharing materials in breach of copyright or without appropriate permissions.
Unfair	Giving an advantage that is not based on equality or justice.
Unjustified	Giving an advantage that is not deserved because it misrepresents one's work or academic ability.
Vexatious	Done to cause unjustified trouble or for a purpose other than genuine.
Working day	A day other than a Saturday or Sunday, a public holiday under the Public Holidays Act 1993 (Vic), or university holiday. In Malaysia, working day means a day other than a Saturday, Sunday or a public holiday in the relevant state in Malaysia. In Indonesia, working day means a day other than a Saturday, Sunday or a public holiday, including joint holidays/mass leave.

GOVERNANCE

Parent policy	Assessment and Academic Integrity Policy
Supporting procedures	Assessment Regime Procedure

	Grading Schema Procedure Marking and Feedback Procedure Scheduled Final Assessments Procedure Special Consideration Procedure
Supporting schedules	N/A
Associated procedures	Data Protection and Privacy Procedure Responsible Conduct of Research: Procedure for Investigating Code Breaches Student Academic and General Misconduct: Hearing and Appeals Panels Procedure Student General Misconduct Procedure
Related legislation	Tertiary Education Quality and Standards Agency Amendment (Prohibiting Academic Cheating Services) Act 2020 (Com) Higher Education Standards Framework (Threshold Standards) 2021 (Com) Private Higher Educational Institutions Act 1996 (Malaysia) Monash University (Academic Board) Regulations Monash University (Council) Regulations
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